



CHAPTER 19.

An Act to provide for the further protection of
wild duck and wild geese. [25th May 1939.]

BE it enacted by the King's most Excellent Majesty,
by and with the advice and consent of the Lords
Spiritual and Temporal, and Commons, in this present
Parliament assembled, and by the authority of the same,
as follows :—

1.—(1) The period in any year during which, under section three of the principal Act, it is unlawful—

Extension
of close
season for
wild duck
and wild
geese.

- (a) to shoot or attempt to shoot, or use a boat for the purpose of shooting or causing to be shot, any wild duck or wild goose; or
- (b) to use any lime, trap, snare, net or other instrument for the purpose of taking any wild duck or wild goose;

shall, instead of beginning with the second day of March and ending with the thirty-first day of July, begin with the first day of February and end with the eleventh day of August.

(2) The date in any year after which, under the said section three, it is unlawful during the said period to expose or offer for sale, or have control or possession of, any wild duck or wild goose recently killed or taken shall be the twenty-eighth day of February instead of the fifteenth day of March.

(3) After the commencement of this Act—

- (a) no order shall be made under the power conferred by section eight of the principal Act making any provision whereby the time during which the killing and taking of wild duck or wild geese or any kind thereof is prohibited is to begin with any date later than the first day of February or end with any date earlier than the eleventh day of August, and
- (b) no order shall be made under the power conferred by section nine of the principal Act exempting any county or any part or parts thereof from the operation of that Act as respects wild duck or wild geese or any kind thereof,

and any order made under the said sections before the commencement of this Act shall cease to have effect if and in so far as it makes any such provision or exemption as aforesaid :

Provided that nothing in this subsection shall prohibit the making after the commencement of this Act of any such order as is mentioned in the next following subsection.

(4) The power of the Secretary of State under section eight of the principal Act shall include power to make an order, in pursuance of an application made under the said section after the commencement of this Act, providing that the time during which the killing and taking of wild duck and wild geese is prohibited shall begin with such date not later than the twenty-first day of February as may be specified in the order in such parts of the county or county borough to which the application relates, being parts contiguous to the low-water mark of ordinary tides, as may be so specified.

Inclusion of
wild geese
in Schedule
to principal
Act.

2.—(1) Subject to the provisions of this section, the principal Act shall have effect as if wild geese were included in the Schedule thereto (which contains a list of birds in the case of which owners and occupiers of land are not exempted from the provisions of section three of that Act).

(2) A Secretary of State may, on the representation of the council of any county, order that the foregoing subsection shall not extend to that county or any part or parts thereof.

(3) Sections four and six of the Wild Birds Protection Act, 1894 (which relate to the publication of orders and the expenses of county councils) shall apply to any order made under this section as they apply to any order made under that Act. 57 & 58 Vict. c. 24.

3.—(1) It shall not be lawful for any person to import into the United Kingdom any dead wild duck or dead wild goose during the period beginning with the first day of February and ending with the eleventh day of August in any year. Prohibition of importation of dead wild duck and geese during close season.

(2) During the period aforesaid in every year goods prohibited to be imported by virtue of this section shall be deemed to be included among the goods enumerated and described in the table of prohibitions and restrictions inwards contained in section forty-two of the Customs Consolidation Act, 1876, and the provisions of that Act and of any Act amending or extending that Act shall apply accordingly. 39 & 40 Vict. c. 36.

(3) Paragraph (2) of section one of the Wild Birds Protection Act, 1881 (which provides that a person shall not be liable to be convicted under section three of the principal Act of exposing or offering for sale, or having the control or possession of, any wild bird recently killed, if he satisfies the court that the bird was killed in some place to which that Act does not extend), shall not apply in respect of any wild duck or wild goose; but a person shall not be liable to be convicted as aforesaid in respect of any wild duck or wild goose if he satisfies the court before whom he is charged that the wild duck or wild goose was imported at a time when the importation thereof was not prohibited by this section. 44 & 45 Vict. c. 51.

4. In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say :— Interpretation.

- (a) "the principal Act" means the Wild Birds Protection Act, 1880, as amended by any subsequent enactment; 43 & 44 Vict. c. 35.

(b) "wild duck" means eider duck, mallard, pochard, shelldrake, shoveller, smew, teal, widgeon, and wild duck of any other species whatsoever, except merganser and goosander;

(c) "wild goose" means a wild goose of any species whatsoever.

Short title,
citation and
extent.

5.—(1) This Act may be cited as the Wild Birds (Duck and Geese) Protection Act, 1939, and may be cited together with the Wild Birds Protection Acts, 1880 to 1908, as the Wild Birds Protection Acts, 1880 to 1939.

(2) This Act shall come into operation on the first day of August nineteen hundred and thirty-nine.

(3) Sections one and two and subsection (3) of section three of this Act shall not extend to Northern Ireland.

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